

		Production is GRANTED. The Court orders that the custodian of records for the City of Seal Beach produce the records described above for an <i>in camera</i> review on October 9, 2026, at 9:00 a.m. in Department CM02. The Court will conduct an <i>in camera</i> review, subject to the foregoing, and will order disclosure after that review only of those documents it determines are relevant to the matter involved in the pending litigation. Cal. Evid. Code § 1045. Plaintiff shall give notice.
2.	30-2024-01378889-CU-BC-CJC National Funding, Inc. vs. RM Realty Associates, LLC	
3.	30-2024-01444459-CU-WT-NJC Park vs. Optimum Professional Property Management, Inc.	Before the Court is a Motion for Reconsideration brought by movants Optimum Property Management, Inc. ("Movant"). ROA 248. Movants seek reconsideration of the Court's May 21, 2026, Order (ROA 199), imposing monetary discovery sanctions upon Movant's counsel, Jackson Lewis, P.C., in the total collective amount of \$40,419.02, due and payable to plaintiff's counsel, Mozaffari Law, P.C. ROAs 199, 248. Motion for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a court's order "may, within 10 days after service upon the party of written notice of entry of the order," move the court to reconsider, modify, or revoke the court's prior order. Cal. Civ. Proc. Code § 1008(a). The moving party's application must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown." <i>Id.</i>

California Code of Civil Procedure § 1008(b) provides that a party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law. Cal. Civ. Proc. Code § 1008(b).

Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were not known or available at the time of the original application. *See Garcia v. Hejmadi*, 58 Cal. App. 4th 674, 690 (1997). Courts will not consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the original application in controversy. *See Id.* (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier).

Here, on May 21, 2026, the Court imposed monetary discovery sanctions upon Movant's counsel in the amount of \$40,419.02 due and payable to Plaintiff's counsel. ROA 199.

On July 17, 2026, Movant filed this Motion for Reconsideration, pursuant to California Code of Civil Procedure Section 1008, arguing that new or different facts and circumstances warrant reconsideration of the order of sanctions.

The Court finds that Movant's Motion for Reconsideration is *untimely* under California Code of Civil Procedure Section 1008, subdivision (a), because it was filed more than ten (10) days after service of written notice of entry of the sanctions order. The Court's sanctions order was issued in May, yet Movants waited almost *two months* before filing this Motion for Reconsideration in July. Accordingly, the Court lacks authority to consider the motion as one for reconsideration under Cal. Civ. Proc. Code § 1008(a).

	Movants contend that their motion is timely under California Code of Civil Procedure Section 1008, subdivision (b), because Section 1008(b) does not impose the ten (10) day deadline applicable to a motion for reconsideration. ROA 274, p.2. The Court disagrees. A motion brought under California Code of Civil Procedure Section 1008, subdivision (b) is a <i>renewed</i> motion for the <i>same order</i> previously sought by the <i>original</i> moving party and refused in whole or in part, or granted conditionally or on terms. Only the party that <i>originally</i> made the application for that order may bring a renewed motion under Section 1008, subdivision (b). Cal. Civ. Proc. Code § 1008(b). Such is not the case here. Here, Movants opposed the original motion; they did not make the original application for the order at issue. <i>See</i> ROA 201. Accordingly, Movants may not invoke Section 1008(b) to seek relief from that order. Moreover, even if timely under Cal. Civ. Proc. Code § 1008, Movants identify no <i>new</i> or different facts, circumstances, or law warranting relief. The settlement agreement relied upon by Movant was executed before the original hearing on May 21, 2026, and was known to the parties at that time. ROA 248. The Court was aware at the hearing that the parties had signed a settlement agreement, yet no notice of settlement had been filed. ROA 270. Based on those circumstances, the Court determined that a final settlement had not yet been completed. <i>Id.</i> The settlement agreement therefore was not new matter that Movants could not, with reasonable diligence, have discovered or presented at the original hearing. Pursuant to the foregoing, Movant's Motion for Reconsideration is DENIED as untimely. Plaintiff shall give notice.
--	---